

HOUSE No. 2641

The Commonwealth of Massachusetts

PRESENTED BY:

Steven S. Howitt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the safe storage of nationally recognized testing laboratory electric mobility devices.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>1/15/2025</i>

HOUSE No. 2641

By Representative Howitt of Seekonk, a petition (accompanied by bill, House, No. 2641) of Steven S. Howitt relative to the storage of electric mobility devices powered by lithium-ion batteries. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the safe storage of nationally recognized testing laboratory electric mobility devices.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 148 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by adding the following section:-

3 Section 61. Storage of electric mobility devices powered by lithium-ion batteries; outdoor
4 storage requirements and safety regulations

5 (a) For the purposes of this section, an electric bicycle shall have the meaning given in
6 Sec. 1, Chap. 90, Title XIV of Part I of the Massachusetts General Laws.

7 (b) For the purposes of this section, a micromobility device shall be defined as every
8 device weighing less than one hundred pounds that (a) has handlebars, a floorboard or a seat that
9 can be stood or sat upon by the operator, and an electric motor, and (b) can be powered by the
10 electric motor and/or human power.

(c) For the purpose of this section, Nationally Recognized Testing Laboratory (NRTL) shall be defined as an organization that meets the qualifications provided in 29 CFR 1910.7(b) and is recognized as an NRTL by the U.S. Department of Labor, Occupational Safety and Health Administration's (OSHA) Nationally Recognized Testing Laboratory Program.

(d) For the purpose of this section, a certified device shall be defined as:

(i) an electric bicycle that has been tested and evaluated by a Nationally Recognized Testing Laboratory with UL 2849 within the scope of its recognition and found to conform with UL 2849 and bears the certification mark of that Nationally Recognized Testing Laboratory.

(ii) a micromobility device that has been evaluated by a Nationally Recognized Testing Laboratory with UL 2272 within the scope of its recognition and found to conform with UL 2272 and bears the certification mark of that Nationally Recognized Testing Laboratory.

(e) Any electric bicycle or micromobility device powered by a lithium-ion battery that is not a certified device must be stored outside of any building or structure. No person shall store any electric bicycle or micromobility device powered by a lithium-ion battery that is not a certified device in any residential, commercial, or public buildings.

(f) If outdoor storage is not feasible due to space restrictions or local zoning, a specialized battery containment enclosure certified to UL 1487 by a Nationally Recognized Testing Laboratory must be used. Such battery containment enclosures must be installed in accordance with the Massachusetts Comprehensive Fire Safety Code, NFPA 1- 2021 edition.

31 (g) Electrically propelled wheeled devices must be stored at least ten feet away from any
32 doors, windows, stairways, or other points of egress.

33 (h) Whoever violates the provisions of this section shall be punished by a fine of not
34 more than five hundred dollars.

35 (i) The Department of Fire Services, in consultation with Underwriters Laboratories and
36 the Executive Office of Public Safety and Security, shall conduct a public awareness campaign
37 to inform the public about the risks associated with improper storage of electrically propelled
38 wheeled devices and lithium-ion batteries.